

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: Raquel Velasquez	Team: Team # 1	CCRB Case #: 201311901	☒ Force	☐ Discourt.	☐ U.S.
			☒ Abuse	☐ O.L.	☐ Injury
Incident Date(s) Friday, 12/13/2013 12:00 AM, Saturday, 12/14/2013 12:05 AM	Location of Incident: Maple Street and Albany Avenue	18 Mo. SOL 6/14/2015	Precinct: 71		
Date/Time CV Reported Sat, 12/14/2013 10:30 AM	CV Reported At: IAB	How CV Reported: Phone	Date/Time Received at CCRB Fri, 12/20/2013 9:39 AM		

Complainant/Victim	Type	Home Address

Witness(es)	Home Address

Subject Officer(s)	Shield	TaxID	Command
1. POM John Mcmanus	15975	949309	071 PCT
2. POF Adeline Thompson	00290	949726	071 PCT
3. SGT Clifford Louis	02793	927098	071 PCT

Witness Officer(s)	Shield No	Tax No	Cmd Name
1. POM Frank Beers	17641	945498	071 PCT
2. POM Paul Mallilo	13679	949246	071 PCT

Officer(s)	Allegation	Investigator Recommendation
A . SGT Clifford Louis	Abuse: Sgt. Clifford Louis authorized stopping the car in which § 87(2)(b) and § 87(2)(b) were occupants.	A . Exonerated
B . SGT Clifford Louis	Force: Sgt. Clifford Louis pointed his gun at § 87(2)(b) and § 87(2)(b)	B . Exonerated
C . POM John Mcmanus	Force: PO John Mcmanus pointed his gun at § 87(2)(b) and § 87(2)(b)	C . Exonerated
D . POF Adeline Thompson	Force: PO Adeline Thompson pointed her gun at § 87(2)(b) and § 87(2)(b)	D . Exonerated
E . SGT Clifford Louis	Abuse: Sgt. Clifford Louis frisked § 87(2)(b) and § 87(2)(b)	E . Unsubstantiated
F . SGT Clifford Louis	Abuse: Sgt. Clifford Louis searched § 87(2)(b)	F . Unfounded

Officer(s)	Allegation	Investigator Recommendation
G . SGT Clifford Louis	Abuse: Sgt. Clifford Louis authorized the search of the car in which § 87(2)(b) and § 87(2)(b) were occupants.	G . Unsubstantiated

Case Summary

On December 14, 2013, at approximately 12:05 a.m., Sgt. Clifford Louis, PO John McManus, and PO Adeline Thompson, from the 71st Precinct Anticrime team, stopped the car occupied by § 87(2)(b) and § 87(2)(b) at the corner of Maple Street and Albany Avenue in Brooklyn (**Allegation A**). Sgt. Louis, PO McManus, and PO Thompson approached the car at gun point (**Allegation B, C and D**). Sgt. Louis frisked § 87(2)(b) and § 87(2)(b) and frisked and allegedly searched § 87(2)(b) (**Allegations E and F**). Then, the officers searched the car they were in (**Allegation G**). § 87(2)(b) and § 87(2)(b) were not arrested or summonsed as a result of this incident (complaint encl. C1-C3; CCRB Statements encl. D1-D9; E1-E7).

Mediation, Civil and Criminal Histories

Notice of claim results are pending (encl. O9). This case was not eligible for mediation. § 87(2)(b)

Civilian and Officer CCRB Histories

- This is the first CCRB complaint filed on behalf of § 87(2)(b) and § 87(2)(b) (encl. A5-A10).
- Sgt. Louis has been a member of the NYPD for fourteen years and there are six substantiated CCRB allegations against him. In case number 200705078, an allegation of abuse of authority-retaliatory summons was substantiated. The board recommended command discipline; the NYPD issued instructions. In case number 200918246, allegations of abuse authority-stop, frisk, and search of person were substantiated. The board recommended charges; the NYPD issued instructions. In case number 201401799, an allegation of abuse of authority-retaliatory summons and discourtesy were substantiated. The board recommended charged; the case is currently assigned to the CCRB's Administrative Prosecution Unit. (encl. A1-A2)
- PO McManus has been a member of the NYPD for four years and there are no substantiated CCRB allegations against him (encl. A3).
- PO Thompson has been a member of the NYPD for four years and there are no substantiated CCRB allegations against her (encl. A4).

Finding and Recommendations

Explanation of Subject Officer Identification

Allegation A is being pleaded against Sgt. Louis because he acknowledged authorizing the car stop. **Allegations B, C and D** are being pleaded against Sgt. Louis, PO McManus and PO Thompson, respectively, because they acknowledged pointing their guns. § 87(2)(b) and § 87(2)(b) stated that they were frisked by a black male officer. § 87(2)(b) also alleged that he was searched by the same black male officer. **Allegations E and G** are being pleaded against Sgt. Louis as he was the only black male officer present during the incident. Although § 87(2)(b) and § 87(2)(b) stated that the car was searched by PO McManus, and PO McManus acknowledged searching the car, **Allegation F** is being pleaded against Sgt. Louis because he authorized the car search.

Recommendations

Allegation A- Abuse of Authority: Sgt. Clifford Louis authorized stopping the car in which

§ 87(2)(b) and § 87(2)(b) were occupants.

Allegation B- Force: Sgt. Clifford Louis pointed his gun at

§ 87(2)(b) and § 87(2)(b)

Allegation C- Force: PO John McManus pointed his gun at

§ 87(2)(b) and § 87(2)(b) § 87(2)(b)

Allegation D- Force: PO Adeline Thompson pointed her gun at

§ 87(2)(b) and § 87(2)(b) § 87(2)(b)

It is undisputed that Sgt. Louis authorized stopping the car in which § 87(2)(b) and § 87(2)(b) were occupants and that Sgt. Louis, PO McManus and PO Thompson pointed their guns at them.

According to § 87(2)(b) and § 87(2)(b) the only victims who provided verified statements, and § 87(2)(b) who was uncooperative with the investigation, on the night of the incident, they left a party at Lowkey Lounge with § 87(2)(b) and § 87(2)(b). They walked together to the car and were headed home. As § 87(2)(b) made a right turn onto Maple Street, he noticed an unmarked car behind him turn on police lights. § 87(2)(b) pulled over to the right, turned off the car engine, rolled down the windows, and turned on the interior light. The unmarked car pulled up behind and stopped. Sgt. Louis, PO McManus, and PO Thompson approached the car with their guns pointed (encl. D1-D9; E1-E7; F1). § 87(2)(b) was uncooperative with the investigation and § 87(2)(b) and § 87(2)(b) were unavailable. The investigation was also unable to obtain a statement from § 87(2)(b) (encl. N15).

§ 87(2)(e), § 87(2)(f)

§ 87(2)(b) observed that a couple of them were reaching into their pockets and then appeared to be placing something in the trunk of the car they were in, although he did not say what he saw and did not say that he observed a firearm. The officers drove up to the location and met up with § 87(2)(b) who pointed out the car occupied by § 87(2)(b) and § 87(2)(b) and identified them as the group he had observed. Given the information that § 87(2)(b) supplied, Sgt. Louis decided to stop the car to investigate whether they had a firearm. Sgt. Louis did not suspect them of any other crimes or violations at the time, and, at the time of the stop, the information supplied by § 87(2)(b) was the only thing that led him to suspect them of being in possession of a firearm. Because of the safety concerns of approaching a car with a firearm in it, Sgt. Louis, PO McManus, and PO Thompson had their guns drawn as they approached the car, and they were all pointing them in the direction of the car. (encl. H1-H6)

According to PO Thompson and PO McManus, Sgt. Lewis relayed to them that § 87(2)(b) had seen § 87(2)(b) and § 87(2)(b) with a firearm, near the trunk of the car. (encl. G1-G20; I1-I8)

A car stop is legal only if there exists, at least, reasonable suspicion that the occupants had committed a crime. *People v. Spencer*, 84 NY2d 749 (1995) (encl. 1a-1i)

An officer can draw and point his firearm at another person if he has reasonable fear for his own or another's safety. *Police Department v. Gliner*, OATH Index 995/00. (encl. 2a-2t)

§ 87(2)(g)

Allegation E- Sgt. Clifford Louis frisked § 87(2)(b)

and § 87(2)(b)

Allegation G- Sgt. Clifford Louis authorized the search of the car in which § 87(2)(b)

occupants. **and** § 87(2)(b) **were**

It is undisputed that officers frisked § 87(2)(b) and § 87(2)(b) and searched their car, including the trunk. The investigation was unable to obtain a statement from § 87(2)(b) (encl. N15).

§ 87(2)(b), § 87(2)(e), § 87(2)(f)

§ 87(2)(b), § 87(2)(e), § 87(2)(f)

§ 87(2)(g), § 87(2)(e), § 87(2)(f)

Allegation F- Sgt. Clifford Louis searched § 87(2)(b)

§ 87(2)(b) alleged that after being frisked by Sgt. Louis, § 87(2)(b) stated, "Why are you checking me like this?" Sgt. Louis said, "Be quiet." Sgt. Louis frisked him again and then removed § 87(2)(b)'s keys, wallet, and cell phone from his pockets (encl. E1-E7).

According to § 87(2)(b) the officers instructed § 87(2)(b) and § 87(2)(b) to exit the car; and they complied. § 87(2)(b) was seated in the

driver seat when he heard § 87(2)(b) say something, so he turned and saw him being frisked by Sgt. Louis by the trunk of the car. Sgt. Louis did not enter any part of § 87(2)(b)'s clothing. (encl. D1-D9)

PO McManus and PO Thompson denied searching or seeing any officer searching § 87(2)(b) or § 87(2)(b) Sgt. Louis, who denied conducting any of the frisks, stated that PO Thompson, and possibly PO McManus, reached the tips of their fingers into the individuals' pockets during the frisks, to feel what was inside, but reaffirmed that nothing was removed from any of the individuals' pockets during the frisks.

§ 87(2)(g)

Team: _____

Investigator: _____	_____	_____
Signature	Print	Date

Supervisor: _____	_____	_____
Title/Signature	Print	Date

Reviewer: _____	_____	_____
Title/Signature	Print	Date

Reviewer: _____	_____	_____
Title/Signature	Print	Date